

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 6

Honorable Rafael Sivilla-Jones, Presiding

191 North First Street, San Jose, CA 95113

Telephone: (408) 882-2160

June 2, 2026

9:00 and 9:01 A.M.

RECORDING COURT PROCEEDINGS IS PROHIBITED

ORAL ARGUMENT

Before 4:00 PM today you must notify the:

- (1) Court by calling (408) 808-6856 and
- (2) Other side by phone or email that you will appear at the hearing to contest the tentative

If you fail to so notify the court or opposing side, the Court will not hear argument, and the tentative ruling will be adopted. (California Rule of Court 3.1308(a)(1) and Local Rule 8.E.)

REMOTE APPEARANCES

Phone only appearances are PROHIBITED. In-person appearances are preferred.

For necessary virtual appearances, you **must use video** and follow **Civil Local Rule 5.**

To access the courtroom, click or copy and paste this link into your internet browser and scroll to

Department 6: <https://santaclara.courts.ca.gov/online-services/remote-hearings>

LINE	CASE NO.	CASE TITLE	TENTATIVE RULING
9:00 <u>1</u>	23CV42929	Aurora Zamarripa v. Victor Rodriguez Gonzalez	Plaintiff petitions this court to compel Defendant for a deposition. Plaintiff filed its request timely—however, Defendant never responded. In fact, it appears communication has been lost with Defendant and his counsel. No opposition was filed to Plaintiff’s petition. Plaintiff’s petition to compel Defendant to appear for a deposition is GRANTED.
9:00 <u>2</u>	24CV432377	Eric Peschke et.al. vs. Arthur Cook et. al.	Plaintiff petitions court for Defendant to produce documents. Plaintiff requested documents of stock sale transaction which Defendant responded was satisfied in a Court ordered protective order. This court deems plaintiff’s request as relevant; Plaintiff’s request for production of documents related to the stock sale transaction is GRANTED. Plaintiff also requests production of all documents related to the LLC and the lease. This court deems such a request as relevant. Plaintiffs request for production of all documents related to the LLC and the lease is GRANTED. Plaintiff petitions this court to order Defendant to produce documents RFP 10-13 related to Qantas Lane, LLC. This court finds this request to be relevant. The petition for Defendant to produce documents RFT 10-13 is GRANTED. Plaintiff’s request for Defendant to produce all documents regarding the property is overbroad and lacks sufficient particularity. Plaintiff’s petition to produce all documents is DENIED. Plaintiff’s petition to order Defendant to produce documents regarding his relationship with Rexel is relevant. Plaintiff’s petition for Defendant to produce documents related to Rexel is GRANTED. Monetary sanctions in the amount of \$10,100 requested by Plaintiff is GRANTED. The court requests oral argument as to why the production of these documents should necessitate the granting of a protective order.
9:00 <u>3</u>	24CV442901	Phoung Vu v. Santa Clara County	See below
9:00 4	24CV443183	Shanna Huynh v. Redis Labs, Inc. et.al.	Plaintiff petitions this court to compel Defendant Redis Labs to provide documents and supplemental responses. Plaintiff requested such documents and Defendant failed to respond. Defendant failed to object to Plaintiff’s petition. Plaintiff’s petition is GRANTED. Plaintiff’s request for sanctions in the amount of \$9,410 is GRANTED.
9:00 <u>5</u>	25CV461020	Helloha Coffee LLC et.al. vs The Clove Art Complex	Plaintiff moves this court to enforce settlement. Defendant admits that defendant could not pay back the terms of the settlement. Plaintiff’s motion is GRANTED. Court will address argument as to whether a financial plan can be agreed upon.
9:00 6-8	25CV477954	SIU Holdings Ltd. Et.al. vs Pouya Taaghol	See below
9:00 9	25CV478811	Stephen Stapley et.al. vs Louis Mariani, et.al.	See below

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Line 3

Calendar Line 3

Case Name: *Vu v. County of Santa Clara*

Case No.: 24CV442901

Defendant County of Santa Clara’s (“County”) request for judicial notice of the complaint, the proof of service of summons filed on July 17, 2024, the May 5, 2025 minute order of Hon. Pennypacker, the declaration of Long Do filed on July 9, 2025, the August 26, 2025 minute order of Hon. Pennypacker, and the August 1, 2024 notice of return without action is GRANTED. (Evid. Code §452, subds. (d), (h).)

County is correct that plaintiff Phuong Vu (“Plaintiff”) first attempted to present her claim on July 17, 2024 for an incident dated May 12, 2022. This is over a year beyond the six-month period to present her claim and thus, Plaintiff cannot demonstrate compliance with the Government Claims Act. (See Gov. Code § 911.2, subd. (a); see also *Last Frontier Healthcare Dist. v. Super. Ct. (Harper)* (2019) 33 Cal.App.5th 492, 497 (stating that “[n]o suit for damages may be maintained against a public entity unless a written claim has first been presented to it... [a] claim for personal injury must be presented ‘not later than six months after the accrual of the cause of action’”); see also *DiCampli-Mintz v. County of Santa Clara* (2012) 55 Cal.4th 983, 990 (stating that “[c]laims for personal injury and property damage must be presented within six months after accrual... failure to timely present a claim for money or damages to a public entity bars a plaintiff from filing a lawsuit against that entity”).) Plaintiff’s opposition neither addresses County’s argument, nor suggests how she might otherwise state a viable cause of action. (See *Badie v. Bank of America* (1998) 67 Cal.App.4th 779, 784-785 (stating that when a party “fails to raise a point, or asserts it but fails to support it with reasoned argument and citations to authority, we treat the point as waived”); see also *Arega v. Bay Area Rapid Transit*

Dist. (2022) 83 Cal. App. 5th 308, 318 (stating same); see also *City of Palo Alto v. Public Employment Relations Bd.* (2016) 5 Cal.App.5th 1271, 1302 (Sixth District stating that “[w]hen points are perfunctorily raised without adequate analysis and authority, we may treat them as abandoned or forfeited”); see also *Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349 (California Supreme Court stating that “Plaintiff must show in what manner he can amend his complaint and how that amendment will change the legal effect of his pleading”); see also *Cooper v. Leslie Salt Co.* (1969) 70 Cal.2d 627, 636 (stating same).) Accordingly, County’s demurrer to the complaint is SUSTAINED without leave to amend on this basis.

Additionally, County is also correct that the complaint filed on July 11, 2024, is more than one year from the date that Plaintiff discovered her alleged injury arising from her hospitalization, treatment and diagnosis of mental illness; therefore, her complaint is time-barred. (See Code Civ. Proc. § 340.5.) Accordingly, County’s demurrer to the complaint is SUSTAINED without leave to amend on this additional basis.

Defendant shall prepare and submit a proposed order consistent with the Court’s tentative ruling.

Line 6-8

The motion for limited discovery by plaintiffs SIU Holdings Limited (“SIU”), Axis Capital Partners Limited (“Axis”), and Ever Trump Investment Limited (“ETIL”) (collectively, “Plaintiffs”) came on for hearing before the Honorable Rafael A. Sivilla-Jones on May 14, 2026 at 9:00 a.m. in Department 6. The matter having been submitted, after full consideration of the authorities submitted by each party, and arguments made by the parties in their papers and the hearing, the court makes the following ruling:

Defendant Pouya Taaghol (“Defendant”) specially moves to strike the complaint, arguing that the defamation cause of action is barred by the common interest privilege, is nonactionable opinion and

that the purportedly defamatory statements are, in fact, true. Plaintiffs SIU Holdings Limited (“SIU”), Axis Capital Partners Limited (“Axis”) and Ever Trump Investment Limited (“ETIL”) (collectively, “Plaintiffs”) move for limited discovery, seeking to compel initial responses to requests for production numbers (“RFPs”) 2, 4, 5, 10, 12, 13, 16, 19, 20, 22, 24, and 26 through 30.

In opposition, defendant Pouya Taaghoul (“Defendant”) agrees to provide responses to RFPs 12, 13, 16, 22, 24 and 27-29 subject to a protective order with a “Highly Confidential” designation, acknowledging good cause for the discovery requests. (See *Balla v. Hall* (2021) 59 Cal.App.5th 652, 692 (stating that while “[a]s a general rule, discovery is stayed upon the filing of an anti-SLAPP motion... the trial court may... ‘for good cause shown... order that specified discovery be conducted’”).) As to these RFPs, Defendant provides no evidence that either SIU or Axis are competitors of BDF; at the very least, these plaintiffs would be entitled to the documents sought by the requests as they are directly relevant to Defendant’s arguments in support of his special motion to strike and Plaintiffs’ ability to oppose those arguments. Defendant’s opposition also fails to explain how requests to RFPs 12, 13 and 16 involve purported trade secrets. (See *City of Palo Alto v. Public Employment Relations Bd.* (2016) 5 Cal.App.5th 1271, 1302 (Sixth District stating that “[w]hen points are perfunctorily raised without adequate analysis and authority, we may treat them as abandoned or forfeited”).) Defendant also neither establishes the existence of a trade secret (see *Amgen Inc. v. California Correctional Health Care Services* (2020) 47 Cal.App.5th 716, 733 (stating that “[t]he party claiming the trade secret privilege under Evidence Code section 1060 bears the burden of proving its entitlement to that privilege”)), nor adequately explains how the purported trade secret would be revealed by documents sought by RFPs 22, 24 and 27-29. Accordingly, Plaintiffs’ motion to compel initial responses to RFPs 12, 13, 16, 22, 24 and 27-29 is GRANTED. Parties are ordered to stipulate to the Model Confidentiality Order published by the Complex Division of the Santa Clara County Superior Court. Defendant shall provide verified, code-compliant responses without objections to RFPs 12, 13, 16, 22, 24 and 27-29 within 10 days of the Court’s order.

Further, Plaintiffs’ motion to compel initial responses to RFPs 2, 4, 5, 10, 19, 20 and 30 is also GRANTED. Plaintiffs show good cause for these requests as they seek evidence from Defendant needed to establish a prima facie case. (See *Balla, supra*, 59 Cal.App.5th at pp.691-692 (stating that

“[t]he trial court reasonably found good cause for discovery, noting its importance in showing actual malice and that the defendant is generally a primary source of evidence”); see also *Schroeder v. Irvine City Council* (2002) 97 Cal.App.4th 174, 191 (stating that “if the plaintiff makes a timely and proper showing in response to the motion to strike that a defendant or witness possesses evidence needed by plaintiff to establish a prima facie case, the plaintiff must be given the reasonable opportunity to obtain that evidence through discovery before the motion to strike is adjudicated... [t]he trial court, therefore, must liberally exercise its discretion by authorizing reasonable and specified discovery timely petitioned for by a plaintiff... when evidence to establish a prima facie case is reasonably shown to be held, or known, by defendant or its agents and employees”).) Defendant shall provide verified, code-compliant responses to RFPs 12, 13, 16, 22, 24 and 27-29 without objections within 10 days of the Court’s order.

Should Defendant withhold any documents to these RFPs 2, 4, 5, 10, 12, 13, 16, 19, 20, 22, 24, and 26-30 on the basis of the attorney-client privilege or the work product doctrine, Defendant shall also provide a privilege log with the identity and capacity of all individuals who authored, sent, or received each allegedly privileged document, the document’s date, a brief description of the document and its contents or subject matter sufficient to determine whether the privilege applies, and the precise privilege or protection asserted. (See *Catalina Island Yacht Club v. Super. Ct. (Beatty)* (2015) 242 Cal.App.4th 1116, 1130 (stating that “[a] privilege log must identify with particularity each document the responding party claims is protected from disclosure by a privilege and provide sufficient factual information for the propounding party and court to evaluate whether the claim has merit... [and] typically should provide the identity and capacity of all individuals who authored, sent, or received each allegedly privileged document, the document's date, a brief description of the document and its contents or subject matter sufficient to determine whether the privilege applies, and the precise privilege or protection asserted”).)

Calendar Line 9

Case Name: *Stapley, et al. v. Madison Terrace LLC, et al.*

Case No.: 25CV478811

Defendants Madison Terrace, LLC (“Madison”), Louis J. Mariani, Dorcas Justine Mariani, Jack N. Mariani, Linda E. Mariani, Martin Mariani, Mariani Nut Company, Inc., Andrew Mariani, Adam Mariani, Kelly Mariani, Matthew Mariani, Justin Mariani, Megan Mariani Lombard, Benjamin Mariani, Chris Mariani, Benjamin 1993 Trust and Chris Mariani 1993 Trust (collectively, “Defendants”) demur to the first amended complaint (“FAC”). Defendants’ request for judicial notice of the complaint and its allegations is GRANTED as to their *existence*. (Evid. Code § 452, subd. (d).) Defendants’ request for judicial notice is DENIED as to the Articles of Organization, the Amendment to the Articles of Organization, and the Statements of Information. While the documents’ existence and filing dates with the California Secretary of State may be proper subjects of judicial notice, Defendants seek to establish certain facts regarding their own actions which are neither official acts of a legislative, executive or judicial department nor a fact or proposition that is not reasonably subject to dispute. (See Evid. Code § 452, subds. (c), (h); see also *Fremont Indemnity Co. v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 115 (stating that “a court cannot by means of judicial notice convert a demurrer into an incomplete evidentiary hearing in which the demurring party can present documentary evidence and the opposing party is bound by what that evidence

appears to show”); see also *New Livable California v. Association of Bay Area Governments* (2020) 59 Cal.App.5th 709, 716 (stating same).)

Defendants’ demurrer to the FAC on the ground that the causes of action against the trustee defendants are barred by the applicable statute of limitations is OVERRULED. “The sham pleading doctrine is not ‘intended to prevent honest complainants from correcting erroneous allegations... or to prevent correction of ambiguous facts.’” (*Larson v. UHS of Rancho Springs, Inc.* (2014) 230 Cal.App.4th 336, 344; see also *Deveny v. Entropin, Inc.* (2006) 139 Cal.App.4th 408, 426 (stating same); see also *JPMorgan Chase Bank, N.A. v. Ward* (2019) 33 Cal.App.5th 678, 691 (stating that “the sham pleading doctrine ‘cannot be mechanically applied’... the rule must be taken together with its purpose, which is to prevent [an] amended pleading which is only a sham, when it is apparent that no cause of action can be stated truthfully”); see also *Austin v. Medicis* (2018) 21 Cal.App.5th 577, 585 (stating that “for a demurrer based on the statute of limitations to be sustained, the untimeliness of the lawsuit must clearly and affirmatively appear on the face of the complaint”).)

Defendants’ demurrer to the FAC on the ground that it fails to allege facts supporting alter ego is OVERRULED. As a preliminary matter, Defendants rely on, in part, matters of which they sought judicial notice; however, as stated above, the Court did not take judicial notice of those facts as they are neither official acts of a legislative, executive or judicial department nor a fact or proposition that is not reasonably subject to dispute. Further, while Defendants address certain factors of the alter ego test, “[w]hether a party is liable under an alter ego theory is a question of fact... [n]o single factor is determinative, and the result depends on the circumstances of each particular case.” (*Leek v. Cooper* (2011) 194 Cal.App.4th 399, 403.)

Defendants demur to the FAC on the ground that all causes of action against the trustee defendants independently fail under the LLC liability shield asserting that “the alter ego allegations are boilerplate contradicted by Plaintiffs’ own financial admissions.” In light of the

Court's ruling above, Defendants' demurrer to the FAC on this ground is likewise
OVERRULED.

Plaintiffs shall prepare and submit a proposed order consistent with the Court's tentative
ruling.